



LLESA PROGRAM
Waiver Release and Indemnity Agreement

Do not alter this document except to add all requested information.

1. Voluntary Participation

I, _____ (participant name), acknowledge that I voluntarily participate in LLESA's activities and events, including the program for which I have registered or may register in the future (the "Program"). I am participating in this Program on non-work time, and am aware that Livermore Laboratory Employee Services Association, Inc., Laboratory Family Services, Inc., Lawrence Livermore National Security, LLC, Sandia National Laboratories, U.S. National Nuclear Security Administration, and U.S. Department of Energy (hereinafter referred to as "LLESA") do not provide accident, medical, workers' compensation, or other insurance to anyone participating in this Program.

2. Assumption of Risk

I am aware of the potential known risks, dangers, and hazards inherent and incidental to engaging in this Program, which may include but is not limited to bone and skeletal tissue damage, blood pressure and heart function abnormality, cardiac arrest, or even death. Furthermore, there may be risks, dangers, and hazards that are not known to me or not reasonably foreseeable. I expressly assume all risks, dangers, and hazards that may occur in connection with my participation in this Program.

I understand LLESA does not render a medical diagnosis of my physical condition or ability to participate in this Program, and that it is my responsibility to contact my personal physician to determine the suitability of my participation.

I understand that this Release applies to all activities and events sponsored by LLESA, including those activities and events that are held virtually or off-site. I further understand that impromptu off-site activities and events or those suggested, scheduled, attended, or facilitated by individuals who also participate in the Program, but which events or activities are not sponsored or facilitated by LLESA, are not affiliated in any way with the Program.

3. Release

I hereby agree that I, my assignees, heirs, distributees, guardians, and legal representatives will not make a claim against, sue, or attach the property of LLESA or any of its agents, officers, directors, employees, contractors, or subcontractors for any personal injury, illness, property damage, wrongful death, or other loss sustained by me, resulting from the negligence of any agent, officer, director, employee, contractor, or subcontractor of LLESA arising out of or related to my participation in this Program.

I hereby release LLESA and its agents, officers, directors, employees, contractors, or subcontractors from all actions, claims, causes of action, or demands, known or unknown, fixed or contingent, that I, my assignees, heirs, distributees, guardians and legal representatives now have or may hereafter have for personal injury, illness, property damage, wrongful death, or other loss sustained by me, arising out of or related to my participation in this Program. It is my intention to exempt and relieve LLESA, its agents, officers, directors, employees, contractors, and subcontractors from liability for personal injury, illness, property damage, wrongful death, or other loss sustained by me, resulting from such party's actions, inactions, or otherwise.

4. Use of Photos

I understand I may be videotaped or photographed during my participation in this Program, and agree to allow my image to be published in informational and promotional materials.

INITIAL: _____

DATE: _____

5. Indemnity

I agree that in the event any claim or cause of action for personal injury, illness, property damage, wrongful death, or other loss, is filed or prosecuted against LLESA, its agents, officers, directors, employees, contractors, or subcontractors, as a result of my participation in this Program, I, my assignees, heirs, distributees, guardians, and legal representatives shall indemnify and hold LLESA, its agents, officers, directors, employees, contractors, or subcontractors harmless from any and all claims or causes of action by whomever or however made or presented.

6. Miscellaneous

I consent to medical care and transportation to obtain treatment in the event of injury as a result of my participation in this Program. I agree that I am fully responsible for treatment provided to me and I agree to pay all costs associated with such medical care and transportation.

This Release shall be governed by and interpreted under the laws of California, without regard to conflict of laws provisions. If any provision of this Release is held to be invalid or unenforceable, in whole or in part, such provision shall be amended to conform to the requirements of law so as to be valid and enforceable. The remaining provisions shall not be affected and shall remain in full force and effect.

7. Knowing and Voluntary Acceptance

I have carefully read this Release and fully understand its contents. I am aware of the consequences of signing this Release, which includes an assumption of risk, release of liability, indemnification, and surrender of certain legal rights. By signing below, I voluntarily agree to be bound by and comply with all of the terms and conditions of this Release.

8. Electronic Signature

The parties agree that this agreement may be electronically signed. Both parties agree that electronic signatures appearing on this agreement are the same as handwritten signatures for the purpose of validity, enforceability, and admissibility. The member may withdraw consent to an electronic signature by delivering a handwritten agreement to LLESA.

Executed at Livermore, California, on _____, 20_____

Signature of Participant _____

Please Print Name _____

E-Mail Address _____

Phone # _____ Employee ID# _____

Sign me up to receive emails about LLESA promotions & events! YES____ NO____

Monitor/Instructor Use Only – PLEASE FILL OUT

FIRST MONTH FREE: ☐

SPECIALTY CLASS: ☐

NETWORKING GROUP ☐

FIRST TIME FREE: ☐
(students only)

START DATE: _____

CLASS: _____

GROUP: _____

NOTES: _____